

August 3, 2026
Dept. 9
Probate Tentative Rulings

13.	26PR0133	IN RE: THE PARKER FAMILY TRUST U/A/D OCTOBER 16, 1989
PETITION HEARING – COMPEL TRUSTEE, REMOVAL		

On May 11, 2026, Petitioner, Victoria Vivar (“Petitioner”) filed a Petition to Compel Trustee; for Removal of Trustee (Prob. C § 17200); for Elder Financial Abuse (Welfare & Institutions Code Section 15610.30); for Return of Trust Property (Prob. C § 850); for Damages for Breach of Fiduciary Duty; for Double Damages (Prob. C § 859); and for Attorney’s Fees and Costs. At the hearing on June 29, 2026, counsel requested a continuance to file a written objection. The hearing was continued to August 3, 2026.

Respondent, Karen Morgan (“Respondent”) filed an Objection and Response on July 16, 2026. Respondent objects that the Petition is not ready to be heard on its merits unless and until Petitioner serves valid notice of hearing upon all interested persons, including Petitioner’s siblings.

The Notice of Hearing filed by Petitioner indicates service was effectuated upon Petitioner, Respondent, and Dennis Parker, Decedents’ son. The Trust includes additional beneficiaries who are required to receive notice pursuant to Probate Code §17203. As notice is improper, the Petition is denied without prejudice.

TENTATIVE RULING #13:

PETITION IS DENIED WITHOUT PREJUDICE FOR LACK OF NOTICE.